

OEM / ODM CONTRACT MANUFACTURING AGREEMENT

代工生产（OEM / ODM）协议

Frozen Thai-Style Food Products — 冷冻泰式食品

DRAFTING NOTE — REMOVE BEFORE SENDING TO A CUSTOMER. This is a manufacturer-protective template prepared for AL-EKHLAS MANUFACTURING SDN. BHD. It is **not legal advice and has not been reviewed by a Malaysian advocate & solicitor**. Have clauses 6, 7, 17, 19, 21 and 27 reviewed before first use — liquidated damages are subject to section 75 of the Contracts Act 1950 and a court may reduce a sum it treats as a penalty. The English text is the operative text; the Chinese text is a courtesy translation only. 本文件为保护制造方立场之范本，未经马来西亚执业律师审核，不构成法律意见。第 6、7、17、19、21、27 条建议先经律师审核后使用。以英文版本为准，中文仅供参考。

PARTIES 立约双方

THE COMPANY / 本公司（受托制造方）

Name 名称	AL-EKHLAS MANUFACTURING SDN. BHD. (trading as AEM Frozen Food / 真心食品)
Reg. No. 注册号	202401022253 (1568102-T)
Address 地址	No 27, Jalan P4/5, Bandar Teknologi Kajang, 43500 Semenyih, Selangor, Malaysia
Contact 联络	+6014-941 3545 · alekhlas.sales@gmail.com

THE CUSTOMER / 客户（品牌方／委托方）

Name 名称	
Reg. No. 注册号	
Address 地址	
Authorised signatory 授权签署人	
Contact 联络	

Date 签署日期: Agreement No. 协议编号:

RECITALS 缘由

- A. The Company operates a frozen food manufacturing facility in Semenyih, Selangor and provides contract manufacturing services. 本公司于雪兰莪州士毛月经营冷冻食品制造厂，并提供代工生产服务。
- B. The Customer wishes to appoint the Company to manufacture frozen Thai-style food products under the Customer's own brand. 客户拟委托本公司以客户自有品牌生产冷冻泰式食品。
- C. The parties record their agreement on the terms below. These terms prevail over any purchase order, vendor form, portal terms, supplier code or standard conditions issued by the Customer, whether before or after this Agreement. 双方同意以下条款。本条款效力优先于客户签发之任何采购单、供应商表格、系统平台条款、供应商守则或标准条件，不论其签发时间在本协议之前或之后。

1. STRUCTURE AND PRIORITY 协议结构与效力顺序

1.1 This Agreement consists of these clauses and Annexes A to G. Where they conflict, the clauses prevail over the Annexes, except on price, specification and quantity, where the Annex or the latest written confirmation prevails. 本协议由本文条款及附件 A 至 G 组成。两者冲突时以本文条款为准；惟价格、规格及数量以附件或最新书面确认为准。

1.2 Each order is placed by written purchase order and becomes binding only when the Company issues a written order confirmation. Writing includes email and WhatsApp. Oral statements, quotations, indications of capacity and lead-time estimates do not bind the Company. 每笔订单须以书面采购单下单，并仅于本公司签发书面订单确认后成立。书面包括电邮及 WhatsApp。口头陈述、报价、产能说明及交期估计均不构成本公司之约束。

1.3 Terms printed on or attached to a Customer purchase order have no effect. The Company's performance of an order is not acceptance of those terms. 客户采购单上印载或附随之条款一概无效。本公司执行订单不构成接受该等条款。

1.4 The Company gives no minimum volume, capacity reservation, production slot or continuity of supply undertaking unless expressly stated in Annex C. 除附件 C 另有明订外，本公司不承诺任何最低产量、产能保留、生产档期或持续供应。

2. DEFINITIONS 定义

Products 产品 — the items listed in Annex A, as manufactured to the Approved Specification. 即附件 A 所列并按核准规格生产之产品。

Approved Specification 核准规格 — the specification sheet and the Golden Sample signed off by both parties under clause 3. 即依第 3 条经双方签署确认之规格书与标准样品（Golden Sample）。

Customer Materials 客户提供物料 — anything supplied by or on behalf of the Customer, including packaging, labels, Thai curry pastes, sauces, imported ingredients, additives and promotional inserts. 即由客户或其代表提供之任何物料，包括包装、标签、泰式酱料、调味料、进口原料、添加剂及宣传附件。

Customer Recipe 客户配方 — only a recipe recorded in Annex B and supplied by the Customer in writing before development begins. 仅指开发前由客户以书面提供，并载明于附件 B 之配方。

Company Formulation 本公司配方 — every formulation, base paste, seasoning system, marinade, sauce base, process parameter, cook profile, freezing profile, yield ratio and production method created, owned or used by the Company, including anything developed by the Company while working on a Customer brief and any improvement to a Customer Recipe. 即本公司创设、持有或使用之一切配方、基础酱料、调味体系、腌料、酱底、工艺参数、烹调曲线、冷冻曲线、出品率及生产方法，包括本公司为执行客户需求所开发之成果，以及对客户配方之任何改良。

Halal Certification 清真认证 — the Malaysian halal certification held by the Company for its own plant, as in force from time to time. 即本公司就其自有厂房所持有并现行有效之马来西亚清真认证。

3. PRODUCTS, SPECIFICATION AND GOLDEN SAMPLE 产品、规格与标准样品

3.1 Production starts only after both parties sign the specification sheet and the Company's Golden Sample for that Product. The signed Golden Sample is the sole quality benchmark. Verbal descriptions, restaurant dishes, competitor products, photographs and marketing images are not benchmarks. 生产仅于双方签署该产品之规格书及本公司标准样品后开始。经签署之标准样品为唯一品质基准。口头描述、餐厅菜色、竞品、照片及宣传图片均不作为基准。

3.2 Natural variation in colour, viscosity, spice heat, aroma, piece count, sauce distribution, ice crystal formation and weight between raw material lots, batches and packing runs is normal and is not a defect. Agreed tolerances are stated in Annex A; where none is stated, $\pm 10\%$ on net weight per unit, $\pm 10\%$ on piece count and $\pm 15\%$ on sauce-to-solid ratio apply. 不同原料批次、生产批次及包装作业之间，在色泽、浓稠度、辣度、香气、颗数、酱汁分布、冰晶及重量上之自然差异属正常，不构成缺陷。允差以附件 A 为准；未载明者，单位净重允差 $\pm 10\%$ 、颗数允差 $\pm 10\%$ 、酱固比允差 $\pm 15\%$ 。

3.3 The Company may substitute a raw material of equivalent function, and may adjust process parameters, equipment and ingredient suppliers, provided the Product remains within the Approved Specification. Chilli varieties, galangal, kaffir lime leaf, lemongrass, coconut milk solids, palm sugar and fish-sauce grade are subject to seasonal and origin variation. 本公司得替换功能相当之原料，

并得调整工艺参数、设备及原料供应商，惟产品须维持于核准规格范围内。辣椒品种、南姜、柠檬叶、香茅、椰浆固形物、椰糖及鱼露等级均存在季节性与其产地差异。

3.4 Any change requested by the Customer to recipe, weight, packaging format or process is a new specification. It requires re-development, re-quotation, a new Golden Sample and a new lead time, and the Customer bears the cost of trial runs, obsolete packaging and written-off materials. 客户对配方、重量、包装形式或工艺提出之任何变更，均属新规格，须重新开发、重新报价、重新确认标准样品并重新计算交期；试产费用、废弃包装及报废物料成本由客户承担。

3.5 The shelf life stated in Annex A is determined from the date of production and applies only where the Product is held continuously at -18°C or below. It is a specification parameter, not a warranty of condition after the Product leaves the Company's premises. 附件 A 所载保质期自生产日起算，且仅适用于产品持续保存于 -18°C 或以下之情形。该保质期为规格参数，非对产品离厂后状态之保证。

4. DEVELOPMENT AND SAMPLING 开发与打样

4.1 Development is ordered under Annex E. The development fee is payable in advance and is non-refundable, including where the Customer does not proceed to production. 开发工作依附件 E 委托。开发费须预付且不予退还，客户最终未投产者亦同。

4.2 The fee covers the number of sampling rounds stated in Annex E. Further rounds, additional flavour directions and additional pack formats are charged separately. 开发费涵盖附件 E 所载之打样轮次。超出轮次、追加口味方向及追加包装形式另行计费。

4.3 Samples are made on pilot equipment. Pilot results do not guarantee identical outcome, yield, texture or cost at production scale. Where scale-up requires reformulation, clause 3.4 applies. 样品以小试设备制作。小试结果不保证量产时之成果、出品率、质地或成本相同。放大量产需调整配方者，适用第 3.4 条。

4.4 All development timelines are estimates. The Company is not liable for any launch date, tender deadline, listing window or campaign date missed by the Customer. 所有开发时程均为估计。客户错失任何上市日期、投标截止日、上架档期或宣传档期，本公司概不负责。

4.5 Samples are supplied for evaluation only. They must not be sold, given to consumers, used in tenders as proof of supply, photographed for commercial use or sent to any other manufacturer. 样品仅供评估。不得销售、不得提供予消费者、不得用于投标作为供应证明、不得作商业用途拍摄，亦不得转交任何其他制造商。

5. OWNERSHIP OF RECIPES, KNOW-HOW AND INTELLECTUAL PROPERTY 配方、技术与智慧财产权归属

This clause is the core protection of the Company and is not negotiable as a whole. 本条为本公司核心保障，不作整体让步。

5.1 **The Customer owns** its brand, trade marks, company name, artwork files, label copy, photography and the Customer Recipe recorded in Annex B. Nothing in this Agreement transfers those rights to the Company. 客户拥有其品牌、商标、公司名称、美术稿档案、标签文案、摄影素材，及附件 B 所载之客户配方。本协议不将该等权利移转予本公司。

5.2 **The Company owns** all Company Formulation, and all process know-how, production methods, equipment settings, supplier arrangements, cost structures, yield data and quality procedures. This applies whether developed before, during or after this Agreement, and whether or not developed in response to a Customer brief, at Customer request, or with Customer feedback, funding or participation. 本公司拥有全部本公司配方，以及一切工艺技术、生产方法、设备参数、供应商安排、成本结构、出品率数据及品质程序。不论其开发时间在本协议之前、期间或之后，亦不论是否因客户需求、客户要求、客户意见、客户出资或客户参与而开发，均属本公司所有。

5.3 Where the Company develops a formulation for the Customer (ODM), the Customer acquires **only the right to purchase the finished Product from the Company**. The Customer acquires no ownership of, licence to, or right to receive the formulation, ingredient list with quantities, process document, supplier identity or costing. The development fee is a service fee, not a purchase of the formulation. 本公司为客户开发配方（ODM）者，客户仅取得向本公司采购成品之权利，不取得该配方、含用量之原料清单、工艺文件、供应商资料或成本结构之所有权、许可或取得权。开发费为服务费，非配方买断费。

5.4 Where the Company improves, adapts, stabilises, scales or corrects a Customer Recipe, the **improvement belongs to the Company**. The Customer keeps its original Annex B recipe and may use that original freely; it may use the improved version only by purchasing the Product from the Company. 本公司对客户配方所作之改良、调整、稳定化、量产化或修正，该改良成果归本公司所有。客户保有其附件 B 原始配方并得自由使用；惟改良后版本仅得透过向本公司采购产品之方式使用。

5.5 The Customer must not, directly or through any third party: (a) reverse engineer, de formulate or submit any Product or sample for laboratory analysis aimed at reproducing it; (b) disclose any Company Formulation or any part of a specification sheet to another manufacturer, consultant or co-packer; (c) use any document, photograph, video, weight, ingredient sequence or process detail obtained from the Company to have the same or a substantially similar product made elsewhere. 客户不得自行或透过任何第三方：(a) 对任何产品或样品进行逆向工程、配方案析，或送交以复制为目的之实验室分析；(b) 向其他制造商、顾问或代工方披露任何本公司配方或规格书之任何部分；(c) 利用自本公司取得之任何文件、照片、影片、重量、投料顺序或工艺细节，于他处生产相同或实质相似之产品。

5.6 On expiry or termination the Company transfers nothing: no formulation, no process document, no technology, no supplier list and no training. Clause 5 survives termination without limit in time. 本协议届满或终止时，本公司不移转任何事项：不移转配方、工艺文件、技术、供应商名单或培训。第 5 条于终止后无期限继续有效。

5.7 The Company may manufacture products of the same type, category, cuisine and format for itself and for any other customer, including Thai-style frozen products, and may sell such products under its own brands. Similarity of category or format is not a breach of this Agreement or of confidentiality. 本公司得为自身及任何其他客户生产同类型、同类别、同菜系、同形式之产品（包括冷冻泰式产品），并得以自有品牌销售。类别或形式之相似不构成违反本协议或保密义务。

6. NON-CIRCUMVENTION 禁止绕单与转厂

6.1 During this Agreement and for **eighteen (18) months** after it ends, the Customer must not have any product manufactured by a third party where that product is made using, derived from or substantially based on a Company Formulation, an Approved Specification or a Golden Sample. 于本协议有效期内及届满或终止后十八（18）个月内，客户不得委托第三方生产任何使用、衍生自或实质基于本公司配方、核准规格或标准样品之产品。

6.2 The Customer must not introduce any third party to the Company's ingredient suppliers, packaging suppliers or subcontractors for the purpose of replicating a Product. 客户不得为复制产品之目的，将任何第三方介绍予本公司之原料供应商、包装供应商或分包商。

6.3 Breach of clause 5.5, 6.1 or 6.2 entitles the Company to immediate termination, to injunctive relief, and to liquidated damages of **RM** or the total invoice value of the preceding twelve (12) months, whichever is higher, as reasonable compensation for loss of formulation value. 违反第 5.5、6.1 或 6.2 条者，本公司得立即终止本协议、申请禁制令，并得请求违约金 **RM** 或前十二（12）个月发票总额（以较高者为准），作为配方价值损失之合理补偿。

7. CONFIDENTIALITY 保密

7.1 Each party keeps the other's confidential information secret, uses it only for this Agreement, and restricts access to staff who need it. Obligations continue for **five (5) years** after termination, and indefinitely for Company Formulation, which is treated as a trade secret. 双方应对对方之保密资讯保守秘密，仅用于本协议目的，并限于必要人员知悉。保密义务于终止后持续五（5）年；本公司配方作为商业秘密，无期限受保护。

7.2 Prices, specification sheets, capacity data, audit reports, ingredient declarations and factory layout are confidential. 价格、规格书、产能资料、稽核报告、原料申报及厂区布局均属保密资讯。

7.3 No photography, filming, live streaming or drone recording on the Company's premises without prior written consent. Any approved footage may be used only for the purpose consented to. 未经事先书面同意，不得于本公司厂区拍照、摄影、直播或使用无人机拍摄。经核准之影像仅得用于同意之用途。

7.4 Neither party names the other, nor uses the other's marks, in advertising, packaging, investor material, tender documents, social media or press without prior written consent. The Customer must not describe the Company's facility, certifications or capacity as its own. 未经事先书面同意，任何一方不得于广告、包装、投资资料、投标文件、社群媒体或新闻稿中提及对方或使用对方标识。客户不得将本公司之厂房、认证或产能描述为其自有。

8. ARTWORK, LABELLING AND REGULATORY RESPONSIBILITY 美术稿、标签与法规责任

8.1 The Customer is the brand owner and the party legally responsible for the label. The Customer prepares and warrants all label content, including product name, ingredient list, allergen declaration, net weight, nutrition information, claims, cooking instructions, country of origin, storage instructions, date marking, barcode and importer or distributor details. 客户为品牌所有人，并为标签之法律责任方。客户负责编制并保证全部标签内容，包括品名、原料表、过敏原申报、净重、营养资讯、宣称、烹调说明、原产地、储存说明、日期标示、条码及进口商或经销商资料。

8.2 The Customer warrants that the label and all marketing complies with the Food Act 1983, the Food Regulations 1985, the Weights and Measures Act 1972, the Trade Descriptions Act 2011 and every other law applicable in each market where the Product is sold, and that it holds all registrations, permits and approvals required for that market. 客户保证标签及一切行销内容符合 1983 年食品法令、1985 年食品条例、1972 年度量衡法令、2011 年商品说明法令，以及产品销售所在各市场之所有适用法律，并保证其持有该市场所需之一切注册、许可与批准。

8.3 The Company prints or applies exactly what the Customer approves in writing under Annex D. Once artwork is signed off, the Customer bears sole responsibility and all cost for any error, omission, non-compliance, wrong weight, wrong ingredient sequence, missing allergen, incorrect claim, spelling error or regulatory rejection, including relabelling, destruction and lost stock. 本公司仅按客户见附件 D 书面核准之内容印制或贴付。美术稿一经签署确认，其后任何错误、遗漏、不合规、重量错误、原料顺序错误、过敏原漏载、宣称不当、拼写错误或法规退件，其全部责任与费用（包括重贴标签、销毁及库存损失）概由客户承担。

8.4 Any review or comment by the Company on artwork is a courtesy and is not regulatory advice, label approval or confirmation of compliance. 本公司对美术稿之任何检视或意见仅属善意协助，不构成法规意见、标签核准或合规确认。

8.5 Claims such as "authentic Thai", "Thai recipe", "made with Thai ingredients", "product of Thailand", "Thai Select", "no MSG", "no preservative", "clean label", "organic", "keto", "low sodium", "chef's recipe" and any health or nutrition claim are made by the Customer at its own risk. The Company does not verify, support or evidence such claims and gives no representation that a Product qualifies for them. 诸如「泰国正宗」「泰式配方」「采用泰国原料」「泰国制造」「Thai Select」「无味精」「无防腐剂」「洁净标签」「有机」「生酮」「低钠」「主厨配方」及任何健康或营养宣称，均由客户自行承担风险作出。本公司不核实、不支持亦不提供该等宣称之证据，且不保证产品符合该等宣称。

8.6 The Customer must not state or imply that the Product is manufactured in Thailand or is of Thai origin. The Products are manufactured in Malaysia and must be labelled accordingly. 客户不得声明或暗示产品于泰国制造或为泰国原产。产品于马来西亚制造，标签须据实标示。

9. HALAL 清真

9.1 The Company's Halal Certification covers production in its own plant up to the point of dispatch. It does not extend to Customer Materials, to the Customer's other suppliers, to the Customer's storage, repacking or outlets, or to the Product after dispatch. 本公司之清真认证涵盖自有厂房之生产过程至出货为止，不延伸至客户提供物料、客户之其他供应商、客户之储存、分装或门店，亦不延伸至出货后之产品。

9.2 The Customer must not use the Company's certificate number, certificate document, logo or plant name on packaging, in marketing or in any application to a certification body without prior written consent, and must not apply any halal mark the Customer is not itself entitled to use. 未经事先书面同意，客户不得于包装、行销或向认证机构之任何申请中使用本公司之证书编号、证书文件、标识或厂名，亦不得标示其本身无权使用之任何清真标记。

9.3 Where the Product is to be halal, every ingredient must come from a supplier and with certification recognised by the competent Malaysian authority. The Company may reject any ingredient, any Customer Material and any recipe element at its sole discretion, including fish sauce, shrimp paste, oyster sauce, rice wine, mirin, cooking alcohol, flavourings, enzymes, emulsifiers and any animal-derived input. Rejection is not a breach by the Company. 产品如须为清真，则每一原料均须来自经马来西亚主管机关认可之供应商并具备认可之认证。本公司得全权拒绝任何原料、任何客户提供物料及任何配方成分，包括鱼露、虾酱、蚝油、料酒、味醂、烹调用酒、香料、酵素、乳化剂及任何动物来源投入物。本公司之拒绝不构成违约。

9.4 If a certification body, authority or consumer questions a halal claim on the Customer's label, the Customer handles and funds the response and indemnifies the Company. If the Company's own certification is suspended, restricted or withdrawn for any reason, the

Company may suspend or terminate supply without liability. 认证机构、主管机关或消费者对客户标签上之清真宣称提出质疑者，由客户处理并承担费用，并应补偿本公司。本公司自身之认证如因任何原因被暂停、限制或撤销，本公司得暂停或终止供应而不负任何责任。

9.5 The Customer must keep the Products segregated from non-halal goods after delivery. Loss of halal integrity after dispatch is the Customer's sole responsibility. 交付后客户须将产品与非清真货品分开存放。出货后清真完整性之丧失，概由客户自行负责。

10. ALLERGENS AND SHARED FACILITY 过敏原与共用设施

10.1 The Products are made in a shared facility. They may contain or come into contact with fish, crustaceans and shellfish (including shrimp paste and shrimp-based seasoning), soy, peanut, tree nuts, sesame, gluten, egg, dairy, celery and mustard. Thai-style recipes commonly use fish sauce, shrimp paste, oyster sauce and peanut. 产品于共用设施生产，可能含有或接触鱼类、甲壳类及贝类（含虾酱及虾味调味料）、大豆、花生、坚果、芝麻、麸质、蛋、乳制品、芹菜及芥末。泰式配方普遍使用鱼露、虾酱、蚝油及花生。

10.2 The Company does not offer an allergen-free, "free-from" or dedicated line unless expressly agreed in writing in Annex A, with the corresponding surcharge. 除于附件 A 以书面明订并支付相应加价外，本公司不提供无过敏原、free-from 或专用产线。

10.3 Allergen disclosure to consumers, retailers, platforms and regulators is the Customer's responsibility. The Company supplies its standard ingredient declaration for the Customer's use; the Customer is responsible for translating that into a compliant label. 对消费者、零售商、平台及监管机关之过敏原告知，为客户之责任。本公司提供其标准原料申报供客户使用；将其转化为合规标签为客户之责任。

11. CUSTOMER MATERIALS 客户提供物料

11.1 Title to and risk in Customer Materials remain with the Customer at all times, including while held at the Company's premises. The Company holds them without charge to itself and without liability for loss, damage, deterioration, pest activity, power failure or shrinkage, except where caused by its own wilful misconduct. 客户提供物料之所有权与风险始终归属客户，包括存放于本公司厂区期间。本公司无偿保管，且除因其本身故意不当行为外，不就遗失、损坏、变质、虫害、停电或损耗负责。

11.2 Customer Materials must be delivered to the Company's premises at the Customer's cost, in the Company's required quantity, with a certificate of analysis, a valid halal certificate where required, and at least **seventy percent (70%)** of shelf life remaining. The Company does not inspect, test or verify Customer Materials and relies on the Customer's documents. 客户提供物料须由客户自费送达本公司厂区，数量须符合本公司要求，并附分析证明、（如需要）有效清真证书，且剩余保质期不少于百分之七十（70%）。本公司不检验、不化验、不核实客户提供物料，并以客户文件为依据。

11.3 A wastage allowance of **five percent (5%)** on packaging and **three percent (3%)** on ingredients applies. Wastage within the allowance is the Customer's loss. The Customer supplies sufficient quantity including allowance; a shortfall that stops or delays production is the Customer's risk, and the Company may charge for idle line time. 包装损耗允差为百分之五（5%），原料损耗允差为百分之三（3%）。允差范围内之损耗由客户承担。客户须提供含损耗在内之足量物料；因物料不足导致停产或延迟者，风险由客户承担，本公司并得就产线闲置时间收费。

11.4 Storage is free for **thirty (30) days**. After that the Company may charge a storage fee per pallet per month. After **ninety (90) days** of inactivity, or thirty (30) days after termination, the Company may require collection at the Customer's cost, and if the Customer does not collect within fourteen (14) days of notice, may dispose of or destroy the materials at the Customer's cost, with no liability for their value. 仓储三十（30）日内免费。逾期本公司得按每托板每月收取仓储费。物料静置逾九十（90）日，或本协议终止后逾三十（30）日，本公司得要求客户自费取回；客户于通知后十四（14）日内未取回者，本公司得自行处置或销毁，费用由客户承担，本公司不就其价值负责。

11.5 The Company is not liable for any defect, contamination, non-compliance, foreign body, off-flavour or short shelf life caused by or originating in Customer Materials, and the Customer indemnifies the Company for any resulting claim. 因客户提供物料所造成或源自该等物料之任何缺陷、污染、不合规、异物、异味或保质期不足，本公司概不负责，客户并应就由此产生之任何索偿补偿本公司。

12. MINIMUM ORDER, RUNS AND TOLERANCE 最低订量、批次与允差

12.1 The minimum order quantity per SKU per production run is stated in Annex A. Orders below MOQ may be declined or accepted with a small-batch surcharge at the Company's discretion. 每一 SKU 每批次之最低订量载于附件 A。低于最低订量之订单，本公司得拒绝，或酌收小批量加工费后接受。

12.2 Production output varies. The Company may deliver and invoice $\pm 10\%$ of the confirmed quantity, and the Customer settles against actual output. The Customer may not reject a delivery for being within that tolerance. 生产产出存在差异。本公司得按确认数量之 $\pm 10\%$ 交付并开立发票，客户按实际产出结算。数量在该允差范围内者，客户不得拒收。

12.3 Once an order is confirmed the Customer may not cancel, reduce, postpone or vary it. Where the Company has already purchased materials, printed packaging, reserved a line or started production, the Customer pays for all materials, work in progress, finished goods and line time in full. 订单一经确认，客户不得取消、减量、延后或变更。本公司已采购物料、印制包装、保留产线或已开始生产者，客户须全额支付一切物料、在制品、成品及产线占用费用。

12.4 Production scheduling, batching and slot allocation are at the Company's discretion. Lead times are estimates that run from the later of order confirmation, receipt of deposit and receipt of all Customer Materials. 生产排程、批次安排及档期分配由本公司决定。交期为估计值，自订单确认、收到订金及收齐全部客户提供物料三者中最迟之日起算。

12.5 The Customer must collect or accept delivery of finished goods within **fourteen (14) days** of notice that they are ready. After that the Company may charge storage, and risk in the finished goods passes to the Customer on the date of the notice. 成品备妥通知后十四 (14) 日内，客户须提货或接受交付。逾期本公司得收取仓储费，且成品风险自通知日起转移予客户。

13. PRICE AND PRICE ADJUSTMENT 价格与价格调整

13.1 Prices are in Ringgit Malaysia, exclude SST and other government charges, exclude delivery unless stated, and are quoted per the Approved Specification and the stated order quantity. 价格以马币计算，不含 SST 及其他政府税费，除另有载明外不含运费，并按核准规格及所载订量报价。

13.2 A quotation is valid for the period stated on it, or **thirty (30) days** if no period is stated. 报价之有效期以报价单所载为准；未载明者为三十 (30) 日。

13.3 The Company may adjust prices with **fourteen (14) days'** written notice where there is a change in the cost of raw materials (including poultry, beef, mutton, seafood, coconut milk, chilli, palm oil and packaging film), utilities, freight, statutory wages, levies, duties, taxes, certification costs or exchange rates. Orders not yet in production are subject to the adjusted price; the Customer may cancel an affected order within seven (7) days of the notice, if not already in production and with all incurred costs paid. 原料（包括禽肉、牛肉、羊肉、海产、椰浆、辣椒、棕油及包装膜）、水电、运费、法定工资、征费、关税、税负、认证费用或汇率成本发生变动时，本公司得于十四 (14) 日书面通知后调整价格。尚未投产之订单适用调整后价格；客户得于通知后七 (7) 日内取消受影响订单，惟以该订单尚未投产且已付清一切已发生费用为限。

13.4 Tooling, moulds, dies, printing plates, cylinders and specialised jigs are charged to and paid for by the Customer. They remain the Company's property and stay at the Company's premises, and are used for the Customer's Products only for as long as this Agreement is in force. 模具、模仁、刀模、印版、印刷滚筒及专用治具由客户支付费用。该等物品仍属本公司财产并存放于本公司厂区，且仅于本协议有效期内用于客户之产品。

13.5 Prices are per SKU and are not transferable between SKUs, quantities or pack formats. 价格按 SKU 报出，不得于不同 SKU、数量或包装形式之间互相援引。

14. PAYMENT, CREDIT AND TITLE 付款、账期与所有权

14.1 Unless Annex C states otherwise: **fifty percent (50%) deposit** on order confirmation, balance in cleared funds before dispatch. The deposit is non-refundable once materials are purchased or production is scheduled. 除附件 C 另有载明外：订单确认时支付订金百分之五十 (50%)，余款于出货前以到账资金付清。物料一经采购或已排定生产，订金不予退还。

14.2 Any credit term must be granted in writing and may be reduced, suspended or withdrawn at any time. A credit term does not survive a late payment. 任何账期须以书面授予，并得随时减少、暂停或撤销。发生逾期付款者，账期即不再适用。

14.3 Overdue sums carry interest at **1.5% per month** or part month, and the Company may suspend production, withhold finished goods, withhold artwork and specification files, stop delivery and require prepayment on all orders. Costs of recovery, including legal fees on a solicitor-and-client basis, are payable by the Customer. 逾期款项按每月百分之一点五（1.5%）（不足一月者按一月计）计息，本公司并得暂停生产、扣留成品、扣留美术稿及规格档案、停止交付，并要求所有订单改为预付。追收费用（包括按律师与客户基准计算之律师费）由客户承担。

14.4 The Customer pays in full without set-off, deduction, withholding or retention of any kind, and may not withhold payment on account of a disputed batch, a claim, a chargeback from its own customer, or a delay. 客户须全额付款，不得作任何抵销、扣减、代扣或保留，亦不得因批次争议、索偿、其下游客户之扣款或延迟而拒付。

14.5 Title to the Products passes only on receipt of payment in full. Until then the Company may retain, stop in transit or recover the Products, and may enter premises where they are held for that purpose. Risk passes under clause 15 regardless of title. 产品所有权仅于款项全额收到后移转。在此之前，本公司得扣留、中途截停或取回产品，并得为此进入存放产品之场所。风险依第 15 条转移，不受所有权归属影响。

14.6 The Company may require a bank guarantee, a letter of credit or a director's personal guarantee as a condition of accepting or continuing to accept orders. 本公司得要求银行保证、信用状或董事个人担保，作为接受或继续接受订单之条件。

15. DELIVERY, RISK AND COLD CHAIN 交付、风险与冷链

15.1 Delivery is Ex Works the Company's premises unless Annex C states otherwise. Risk passes to the Customer when the Products are loaded onto the collecting vehicle or handed to the carrier, whether or not the carrier is arranged by the Company. 除附件 C 另有载明外，交付条件为本公司厂区交货（Ex Works）。产品装上提货车辆或交付承运人时（不论承运人是否由本公司安排），风险即转移予客户。

15.2 Where the Company arranges transport it does so as the Customer's agent and at the Customer's cost and risk. The Customer must ensure the receiving vehicle is at **-18°C or below** before loading and must present a pre-cooled vehicle; the Company may refuse to load an inadequate vehicle and charge for the aborted despatch. 本公司安排运输者，系以客户代理人身份为之，费用及风险由客户承担。客户须确保接货车辆于装货前已达 **-18°C** 或以下，并须提供预冷车辆；车辆条件不符者，本公司得拒绝装货并就该次出货落空收费。

15.3 All delivery and despatch dates are estimates. The Company is not liable for delay and no liquidated damages, late delivery penalty, back-order charge, chargeback, fine, deduction or service-level penalty imposed by the Customer or its own customers applies to the Company. 所有交付及出货日期均为估计。本公司不就延迟负责；客户或其下游客户所施加之任何违约金、逾期罚款、缺货费、扣款、罚金、扣项或服务水准罚则，一概不适用于本公司。

15.4 Partial and staged delivery is permitted and each part is invoiced separately. 允许分批及分阶段交付，各批分别开立发票。

15.5 After handover, maintaining the cold chain is the Customer's sole responsibility. Products must be held at **-18°C or below** and must not be thawed and refrozen. The Company has no liability for any issue arising after handover. 交付后维持冷链为客户之专属责任。产品须保存于 **-18°C** 或以下，且不得解冻后再冷冻。交付后所生之任何问题，本公司概不负责。

16. INSPECTION, ACCEPTANCE, RECORDS AND AUDIT 验收、纪录与稽核

16.1 The Customer inspects quantity, SKU, packaging, labelling and frozen condition at handover. Any visible issue must be reported in writing within **two (2) hours** of handover with clear unedited photographs of the carton, the label, the product and the despatch document. 客户须于交付时检查数量、SKU、包装、标签及冷冻状态。任何可见问题须于交付后两（2）小时内以书面提出，并附未经修图之清晰照片，涵盖外箱、标签、产品及出货文件。

16.2 A latent defect must be reported in writing within **forty-eight (48) hours** of discovery and in any event within **thirty (30) days** of handover, with batch code, retained affected units and photographs. Affected units must be kept frozen and available for the Company's collection; units discarded, sold on or thawed cannot support a claim. 隐蔽瑕疵须于发现后四十八（48）小时内且无论如何于交付后三十（30）日内以书面提出，并提供批号、留存之受影响单品及照片。受影响单品须保持冷冻并供本公司取回；已丢弃、已转售或已解冻者不得作为索偿依据。

16.3 Products not reported within these windows are deemed accepted, and no claim may be made afterwards for that consignment. 未于上述期限内提出者，产品视为已验收，其后不得就该批货物索偿。

16.4 The Company retains a retention sample and the batch production record for each batch for the shelf life of the Product plus **six (6) months**. The Company's retention sample, batch record, weight log, metal detection log and temperature record are the primary evidence in any dispute about that batch. Test results on units held by the Customer outside a maintained cold chain are not accepted. 本公司就每一批次保留留样及批生产纪录，保存期为该产品保质期加六（6）个月。本公司之留样、批纪录、重量纪录、金属检测纪录及温度纪录，为该批次任何争议之主要证据。客户处未维持冷链之单品检测结果不予接受。

16.5 The Customer may audit the Company's facility **once per calendar year**, on at least fourteen (14) days' written notice, during working hours, for up to one working day, with no more than two auditors, limited to areas relevant to the Customer's Products. The audit excludes areas, documents, recipes, costings and samples relating to the Company's own brands or to other customers. No photography or copying of documents without consent. The Company may charge a fee for additional, extended or customer-mandated third-party audits, and for any certification, questionnaire, platform onboarding or vendor portal work requested by the Customer. 客户得每个日历年稽核一次本公司厂房，须至少提前十四（14）日书面通知，于工作时间内进行，时间不超过一个工作日，人数不超过两名稽核员，范围限于与客户产品相关之区域。稽核不包括与本公司自有品牌或其他客户相关之区域、文件、配方、成本及样品。未经同意不得拍照或复制文件。追加稽核、延长稽核、客户指定之第三方稽核，以及客户要求之任何认证、问卷、平台上架或供应商系统作业，本公司均得收费。

16.6 No audit, inspection, approval, certificate or test report issued to or by the Customer transfers responsibility for the label, the claims or the finished product to the Company. 任何向客户签发或由客户作出之稽核、检验、核准、证书或检测报告，均不将标签、宣称或成品之责任移转予本公司。

17. WITHDRAWAL, RECALL AND PRODUCT LIABILITY 下架、召回与产品责任

17.1 As brand owner, the Customer owns and manages any withdrawal or recall of the Products, including notification to authorities, customers and consumers, and bears all cost. 客户作为品牌所有人，负责并主导产品之任何下架或召回，包括向主管机关、客户及消费者通报，并承担全部费用。

17.2 The Company contributes to direct recall cost **only** where an independent accredited laboratory, jointly appointed, establishes that the defect was caused solely by the Company's failure to manufacture to the Approved Specification, and not by Customer Materials, the label, the artwork, the recipe, transport, storage, handling or any act of the Customer or a third party. The Company's contribution is capped under clause 19. 本公司仅于双方共同委任之独立认可实验室认定该缺陷系单纯因本公司未按核准规格生产所致，且非因客户提供物料、标签、美术稿、配方、运输、储存、处理或客户或第三方之任何行为所致时，方就直接召回费用分担。本公司之分担额受第 19 条上限限制。

17.3 The Company is not liable in any circumstances for recall administration cost, retailer delisting or penalty charges, platform fines, destruction cost, advertising or public relations cost, regulatory fines, loss of listing, loss of profit or damage to reputation. 在任何情形下，本公司均不就召回行政费用、零售商下架或罚款、平台罚金、销毁费用、广告或公关费用、监管罚款、上架资格损失、利润损失或商誉损害负责。

17.4 The Customer must maintain product liability and public liability insurance of not less than **RM 1,000,000** per occurrence with a reputable Malaysian insurer, name the Company as an additional insured or include a waiver of subrogation in the Company's favour, and produce the certificate on request and on each renewal. Failure to maintain the insurance is a material breach. 客户须向信誉良好之马来西亚保险公司投保产品责任险及公众责任险，每一事故保额不低于 **RM 1,000,000**，并将本公司列为附加被保险人或纳入有利于本公司之代位求偿权放弃条款，且应于本公司要求时及每次续保时提供保单证明。未维持该保险构成重大违约。

17.5 Each party notifies the other in writing within twenty-four (24) hours of becoming aware of a food safety complaint, illness report, authority enquiry or media enquiry involving the Products. The Customer must not name the Company publicly without prior written consent, and must not make any statement admitting liability on the Company's behalf. 任何一方知悉涉及产品之食品安全投诉、疾病报告、主管机关查询或媒体查询后，应于二十四（24）小时内书面通知对方。未经事先书面同意，客户不得公开提及本公司，亦不得代本公司作出任何承认责任之陈述。

18. CUSTOMER WARRANTIES AND INDEMNITY 客户保证与补偿

18.1 The Customer warrants that: (a) it has the right to use its brand, trade marks, artwork, photography, product names and Customer Recipe, and these infringe no third-party right; (b) it is not bound by any obligation to another manufacturer that conflicts with this Agreement; (c) all information it gives the Company is accurate; (d) it holds all licences and registrations needed to sell the Products in each market. 客户保证：(a) 其有权使用其品牌、商标、美术稿、摄影素材、品名及客户配方，且不侵害任何第三方权利；(b) 其未受任何与本协议冲突之他方义务约束；(c) 其提供予本公司之一切资讯均属真实准确；(d) 其持有于各市场销售产品所需之全部执照与注册。

18.2 The Customer indemnifies the Company in full against all claims, losses, fines, damages, costs and legal fees arising from: the Customer's brand, marks, artwork, label, claims or recipe; any Customer Material; any breach of clause 5, 6, 8 or 9; the Customer's storage, transport, repacking, reprocessing, relabelling, cooking or sale of the Products; any act of the Customer's staff, agents, distributors, franchisees, platforms or customers; and any third-party or consumer claim other than one falling within clause 17.2. 客户应就以下事由所生之一切索偿、损失、罚款、损害、费用及律师费，全额补偿本公司：客户之品牌、标识、美术稿、标签、宣称或配方；任何客户提供物料；违反第 5、6、8 或 9 条；客户对产品之储存、运输、分装、再加工、重贴标签、烹调或销售；客户之雇员、代理、经销商、加盟商、平台或客户之任何行为；以及除第 17.2 条范围内者外之任何第三方或消费者索偿。

18.3 The indemnity survives termination and is not limited by clause 19. 补偿义务于本协议终止后继续有效，且不受第 19 条上限限制。

19. LIMITATION OF LIABILITY 责任限制

19.1 To the fullest extent permitted by law, the Company's total liability for any claim relating to a batch is limited to the invoice value actually paid by the Customer for that batch, and the Company's aggregate liability under this Agreement in any twelve (12) month period is limited to the total amount paid by the Customer to the Company in the **three (3) months** before the event giving rise to the claim. 在法律允许之最大范围内，本公司就任何批次相关索偿之责任总额，以客户就该批次实际已付之发票金额为上限；本公司于本协议下任何十二 (12) 个月期间之责任总额，以索偿事件发生前三 (3) 个月内客户向本公司支付之总额为上限。

19.2 The Company is not liable for loss of profit, revenue, goodwill, listing, contract, opportunity or customers, for wasted marketing spend, for business interruption, or for any indirect, incidental, special or consequential loss, however caused. 本公司不就利润、收入、商誉、上架资格、合约、商机或客户之损失，不就已投入之行销费用，不就营运中断，亦不就任何间接、附带、特殊或衍生损失负责，不论其成因为何。

19.3 All conditions, warranties and terms implied by statute or common law, including as to merchantable quality and fitness for purpose, are excluded to the extent permitted by law. The parties contract as businesses; the Consumer Protection Act 1999 does not apply between them. 在法律允许之范围内，排除法规或普通法所隐含之一切条件、保证与条款，包括适销品质及适用特定目的之隐含条件。双方以商业主体身分订约，1999 年消费者保护法令不适用于双方之间。

19.4 Any claim must be brought within **twelve (12) months** of the handover of the batch concerned. 任何索偿须于相关批次交付后十二 (12) 个月内提出。

19.5 This clause does not exclude liability for death or personal injury caused by negligence, for fraud, or any other liability that cannot be excluded under Malaysian law. 本条不排除因过失致死或人身伤害之责任、欺诈责任，或依马来西亚法律不得排除之其他责任。

20. TERM AND TERMINATION 期限与终止

20.1 This Agreement runs for **twelve (12) months** from the date of signature and renews automatically for successive twelve (12) month periods unless either party gives **sixty (60) days'** written notice. 本协议自签署日起为期十二 (12) 个月，除任一方提前六十 (60) 日书面通知外，自动续期十二 (12) 个月，依此类推。

20.2 The Company may terminate or suspend supply immediately, without liability, if the Customer: fails to pay on time; breaches clause 5, 6, 7, 8, 9 or 17.4; becomes insolvent, is wound up or has a receiver appointed; makes a false or misleading claim about the

Products, the Company or its certifications; damages the Company's reputation or its certifications; or is convicted of, or investigated for, a food safety, halal or trade description offence. 客户有下列情形者，本公司得立即终止或暂停供应而不负任何责任：未按期付款；违反第 5、6、7、8、9 或 17.4 条；无偿债能力、进入清算或被委任接管人；就产品、本公司或其认证作出虚假或误导性陈述；损害本公司之声誉或认证；或因食品安全、清真或商品说明之罪行被定罪或被调查。

20.3 On termination: all outstanding invoices become immediately due; the Customer pays for all finished goods, work in progress, materials purchased and printed packaging; and the Customer collects its Customer Materials under clause 11.4. 本协议终止时：所有未付发票立即到期；客户须支付一切成品、在制品、已采购物料及已印制包装之费用；客户并须依第 11.4 条取回其提供之物料。

20.4 The Company may sell or dispose of branded finished goods that the Customer does not pay for or collect, after fourteen (14) days' notice, and may remove or obliterate the Customer's branding for that purpose. The Customer remains liable for any shortfall. 客户未付款或未提取之带牌成品，本公司得于十四（14）日通知后出售或处置，并得为此移除或涂销客户之品牌标识。不足之差额由客户负责。

20.5 Clauses 5, 6, 7, 8, 9, 16.4, 17, 18, 19, 20.3 to 20.5, 22 and 23 survive termination. 第 5、6、7、8、9、16.4、17、18、19、20.3 至 20.5、22 及 23 条于终止后继续有效。

21. NO EXCLUSIVITY, NO AGENCY, NO POACHING 无专属、无代理、禁止挖角

21.1 This Agreement is non-exclusive in every respect. The Customer has no category, recipe, territory, channel or customer exclusivity unless expressly granted in Annex C against a paid and met minimum volume, and any exclusivity lapses automatically if the volume is not met. 本协议于各方面均属非专属。除于附件 C 就已付费并达标之最低采购量明订外，客户不享有任何类别、配方、地区、渠道或客户之专属权；未达约定采购量者，专属权自动失效。

21.2 Nothing creates a partnership, joint venture, agency, franchise, distributorship or employment relationship. Neither party may bind the other. 本协议不构成合伙、合资、代理、加盟、经销或雇佣关系。任何一方不得约束对方。

21.3 The Customer may not assign, novate, subcontract or charge this Agreement without the Company's written consent. The Company may assign to a related company or on a reorganisation. 未经本公司书面同意，客户不得转让、更新、分包或质押本协议。本公司得转让予关联公司或于重组时转让。

21.4 During this Agreement and for twelve (12) months after, the Customer must not solicit or employ any of the Company's chefs, R&D, production or QA staff. Breach entitles the Company to liquidated damages equal to **six (6) months** of that person's gross remuneration as reasonable compensation for recruitment and training loss. 于本协议有效期内及届满或终止后十二（12）个月内，客户不得招揽或雇用本公司之厨师、研发、生产或品管人员。违反者，本公司得请求相当于该人员六（6）个月总报酬之违约金，作为招聘与培训损失之合理补偿。

22. FORCE MAJEURE 不可抗力

22.1 Neither party is liable for delay or failure to perform caused by an event beyond its reasonable control, including act of God, flood, fire, epidemic, public health order, war, strike, power or water failure, cold-store or blast-freezer breakdown, raw material shortage, port or transport disruption, cyber incident, change of law, and any suspension, restriction or withdrawal of a certification by a certification body or authority. 任何一方不就超出其合理控制之事件所致之延迟或不履行负责，包括天灾、水灾、火灾、疫病、公共卫生命令、战争、罢工、停电或停水、冷库或急冻设备故障、原料短缺、港口或运输中断、网路事故、法规变更，以及认证机构或主管机关对认证之任何暂停、限制或撤销。

22.2 The Customer's payment obligations are not suspended by force majeure. If the event continues for more than ninety (90) days either party may terminate the affected orders without liability. 不可抗力不中止客户之付款义务。事件持续超过九十（90）日者，任一方得终止受影响订单而不负责任。

23. NOTICES, GOVERNING LAW AND DISPUTES 通知、管辖法律与争议

23.1 Notices are valid if given to the contact details on page 1 by email or WhatsApp, or by hand or courier to the registered address. WhatsApp conversations, emails and the Company's order records are admissible evidence of what was agreed. 通知以电邮或 WhatsApp 发送至第 1 页所载联络资料，或以亲送或快递送达注册地址者，即为有效。WhatsApp 对话、电邮及本公司之订单纪录，得作为约定内容之证据。

23.2 This Agreement is governed by the laws of Malaysia. The parties submit to the non-exclusive jurisdiction of the courts of Malaysia, and either party may refer a dispute to arbitration at the Asian International Arbitration Centre (AIAC) in Kuala Lumpur, in English, before a sole arbitrator. 本协议受马来西亚法律管辖。双方接受马来西亚法院之非专属管辖；任何一方亦得将争议提交位于吉隆坡之亚洲国际仲裁中心（AIAC），以英文由独任仲裁员仲裁。

23.3 Nothing prevents the Company from seeking an injunction or other urgent relief in any court to protect Company Formulation, confidential information or intellectual property. 本条不妨碍本公司为保护本公司配方、保密资讯或智慧财产权，向任何法院申请禁制令或其他紧急救济。

23.4 The parties first attempt to resolve a dispute by discussion between their authorised representatives within fourteen (14) days. This does not delay any claim for unpaid invoices or urgent relief. 双方应先由授权代表于十四（14）日内协商解决争议。本款不延迟任何未付发票之请求或紧急救济之申请。

24. GENERAL 一般条款

24.1 This Agreement and its Annexes are the entire agreement between the parties on its subject matter and replace all prior discussions, quotations, proposals, presentations and memoranda. 本协议及其附件构成双方就本协议标的之完整约定，并取代所有先前之讨论、报价、提案、简报及备忘录。

24.2 No variation is effective unless in writing and signed by an authorised signatory of each party. An email confirmation of price, quantity or specification is sufficient for that item only. 除经双方授权签署人书面签署外，任何变更均不生效。就价格、数量或规格之电邮确认，仅对该项目有效。

24.3 No failure or delay in enforcing a right waives it. A waiver must be in writing and applies only to the instance given. 未行使或迟延履行权利不构成放弃。放弃须以书面为之，且仅适用于该具体情形。

24.4 If a provision is unenforceable it is modified to the minimum extent necessary, or severed, and the rest continues in force. 任一条款不可执行者，于必要最小范围内作修正，或予剔除，其余条款继续有效。

24.5 This Agreement may be signed in counterparts and by scanned or electronic signature, each of which is valid. 本协议得以副本方式签署，并得以扫描或电子签名签署，各具同等效力。

24.6 The English text governs. The Chinese text is a translation for convenience and does not vary the English. 以英文版本为准。中文为便利而作之翻译，不变更英文条款之内容。

SIGNATURES 签署

For and on behalf of AL-EKHLAS MANUFACTURING SDN. BHD. (202401022253)

Signature 签名: Company stamp 公司印章:

Name 姓名:

Designation 职务: Date 日期:

For and on behalf of the Customer 客户

Signature 签名: Company stamp 公司印章:

Name 姓名:

Designation 职务: Date 日期:

I confirm I am authorised to sign this Agreement on behalf of the Customer. 本人确认本人经授权代表客户签署本协议。

ANNEXES 附件

ANNEX A — PRODUCTS AND APPROVED SPECIFICATION 产品与核准规格

One sheet per SKU. Production does not start until this sheet and the Golden Sample are signed by both parties. 每一 SKU 一张。本表及标准样品未经双方签署前不得投产。

Field 项目	Detail 内容
SKU code 编号	
Product name on label 标签品名	e.g. Green Curry Chicken 青咖喱鸡 / Tom Yum Soup Base 冬阴功汤底 / Pad Thai Sauce 泰式炒河粉酱 / Thai Basil Chicken 打抛鸡 / Thai Fish Cake 泰式鱼饼 / Thai Spring Roll 泰式春卷
Format 形式	retort pouch / vacuum pack / IQF / block frozen / tray
Net weight per unit 单位净重	 g ±%
Units per carton 每箱数量	
Packaging supplied by 包装提供方	Company / Customer
Shelf life 保质期	 months from production at -18°C or below
Storage 储存	-18°C or below, do not refreeze after thawing
Cooking instruction (Customer's text) 烹调说明 (客户提供)	
Declared ingredient list (Customer's label text) 标签原料表 (客户提供)	
Allergens present 含过敏原	fish / crustacean / soy / peanut / tree nut / sesame / gluten / egg / dairy
Halal required 是否须清真	Yes / No — certification scope per clause 9
Chilli heat level 辣度	mild / medium / hot — tolerance ±.....
MOQ per run 每批最低订量	 kg / cartons
Indicative lead time 参考交期	 working days (estimate only, clause 12.4)
Tolerances 允差	net weight ±10% · piece count ±10% · sauce:solid ±15% unless stated
Golden Sample ref & date 标准样品编号与日期	

Signed 签署 — Company 本公司: Customer 客户: Date 日期:

ANNEX B — CUSTOMER RECIPE (WHAT THE CUSTOMER BROUGHT) 客户配方 (客户带入之内容)

Purpose: to record exactly what the Customer owned before development, so clause 5 can be applied. **Anything not listed here is Company Formulation.** 目的：明确记录客户于开发前即已拥有之内容，以适用第 5 条。未载于本附件者，均属本公司配方。

#	Item supplied in writing by the Customer 客户以书面提供之内容	Date received 收到日期
1		
2		
3		

☐ The Customer supplied no recipe. The formulation is developed by the Company and is Company Formulation in full. ☐ 客户未提供任何配方。配方由本公司开发，全部属本公司配方。

Signed 签署 — Company: Customer: Date:

ANNEX C — COMMERCIAL TERMS 商务条款

Item 项目	Agreed 约定
Price per SKU 各 SKU 价格	attached quotation ref dated (valid 30 days)
Currency and tax 货币与税	MYR, excluding SST and government charges
Payment 付款	50% deposit on confirmation, balance before dispatch, unless:
Credit term (if any) 账期	 days — granted in writing, revocable (clause 14.2)
Deposit refundable? 订金可退否	No, once materials purchased or production scheduled
Delivery term 交付条件	Ex Works Semenyih / Delivered at (cost:)
Minimum annual volume 年度最低采购量	 per SKU
Exclusivity 专属安排	None / Granted only as: (lapses if volume not met, clause 21.1)
Tooling and plate cost 模具与印版费	RM payable by Customer, Company retains ownership (clause 13.4)
Storage after 30 days 逾 30 日仓储费	RM per pallet per month
Customer insurance 客户保险	product & public liability ≥ RM 1,000,000, certificate attached
Liquidated damages figure for clause 6.3 第 6.3 条违约金金额	RM

ANNEX D — ARTWORK APPROVAL AND LABEL RESPONSIBILITY 美术稿核准与标签责任

Artwork ref 美术稿编号: Version 版本: SKU: Date 日期:

The Customer confirms that it has checked and approves this artwork in full, and that: 客户确认已完整检查并核准本美术稿，并确认：

☐ product name, ingredient list, order of ingredients and additive names are correct and complete 品名、原料表、原料排序及添加剂名称正确且完整 ☐ allergen declaration is correct and complete 过敏原申报正确且完整 ☐ net weight, nutrition panel and serving information are correct 净重、营养标示及份量资讯正确 ☐ all claims are substantiated by the Customer and lawful in every market of sale 一切宣称均由客户负责举证，且于各销售市场合法 ☐ halal marking (if any) is one the Customer is entitled to use, per clause 9.2 清真标记（如有）为客户依第 9.2 条有权使用者 ☐ country of origin is stated as Malaysia, per clause 8.6 原产地依第 8.6 条标示为马来西亚 ☐ barcode, date format, importer/distributor details and legal notices are correct 条码、日期格式、进口商／经销商资料及法定注意事项正确

The Customer accepts sole responsibility and all cost for any error in the approved artwork, including relabelling, destruction, recall and regulatory consequences. The Company prints exactly as approved. 客户就经核准美术稿之任何错误承担专属责任及全部费用，包括重贴标签、销毁、召回及法规后果。本公司仅按核准内容印制。

Customer authorised signatory 客户授权签署人: Date 日期:

ANNEX E — DEVELOPMENT AND SAMPLING ORDER 开发与打样委托

Item 项目	Detail 内容
Brief 需求说明	
Number of SKUs 开发数量	
Development fee 开发费	RM payable in advance, non-refundable (clause 4.1)
Sampling rounds included 含打样轮次	 rounds; further rounds RM each
Trial run cost 试产费用	at cost, payable by Customer
Ownership 成果归属	Company Formulation per clause 5.2–5.4
Indicative timeline 参考时程	 weeks (estimate only, clause 4.4)
Credit against production 抵扣安排	☐ none ☐ credited against first kg ordered within months

ANNEX F — CUSTOMER DECLARATION: HALAL, REGULATORY AND MATERIALS 客户申报：清真、法规与物料

The Customer declares and warrants that: 客户申报并保证：

1. It holds the following licences/registrations for the sale of the Products: 其持有销售产品所需之下列执照／注册：.....
2. Every Customer Material it supplies is lawful, fit for food use, and where halal is required, carries certification recognised by the competent Malaysian authority. Certificates attached: 其提供之每项物料均合法、适合食品用途，且于须清真时具备经马来西亚主管机关认可之认证。附件证书：.....
3. It will not use the Company's certification number, certificate, logo or plant name without written consent (clause 9.2). 未经书面同意不使用本公司之认证编号、证书、标识或厂名（第 9.2 条）。
4. It is responsible for halal integrity after dispatch, including segregated storage and its own outlets (clause 9.5). 出货后之清真完整性由其负责，包括分隔储存及其自有门店（第 9.5 条）。
5. Its product liability insurance is in force as required by clause 17.4. Policy no.: Expiry: 其产品责任险依第 17.4 条有效。保单号：..... 到期日：.....

Customer authorised signatory 客户授权签署人: Date 日期:

ANNEX G — AUTHORISED CONTACTS 授权联络人

Role 角色	Company 本公司	Customer 客户
Orders 订单		
Quality / complaints 品质与投诉		
Artwork approval 美术稿核准		
Payment 付款		
Recall contact (24h) 召回联络 (24 小时)		

Only the persons named here may approve artwork, specifications and orders. Changes must be notified in writing. 仅本附件所列人员得核准美术稿、规格及订单。变更须以书面通知。